

MANAGEMENT INDEMNITY PACKAGE
Directors, Officers and Corporate Liability, Employment
Practices Liability, Fiduciary Liability and Crime Insurance

BINDER FOR PRIVATE COMPANIES

Producer or Broker: Chris Duca

Brokerage: RSG Specialty, LLC, operating through its division RT Specialty
1166 Avenue of the Americas Floor 18
New York, NY 10036

Policy Number: ML1000005-02

Binder Expiration Date: December 15, 2025

Parent Corporation: The Fireman Group Cafe Concepts, Inc.

Address: 888 Seventh Avenue Suite 203
New York, NY 10106

Policy Period: From November 15, 2025 to November 15, 2026

Insurance Carrier: Trisura Specialty Insurance Company (Non-Admitted)

Policy Form: Private Company Management Indemnity Package
TMIP.000-PC (03/24)

Coverage Sections Bound:

Coverage Section

- (I) Directors, Officers and Corporate Liability (D&O)
(II) Employment Practices Liability (EPL)
(III) Fiduciary Liability (FLI)
(IV) Crime (CR)

Bound

- | | |
|---|--|
| ☒ Yes | ☐ No |
| ☒ Yes | ☐ No |
| ☐ Yes | ☒ No |
| ☐ Yes | ☒ No |

Liability Coverage Sections Limits:

Coverage Section	Separate Limit of Liability	Shared Limit of Liability	Retentions
(I) D&O	\$4,000,000	Shared: N/A Shared with: (i): EPL ☐ (ii): FLI ☐	\$0 each Claim under Insuring Agreement A \$25,000 each Claim under Insuring Agreement B and/or Insuring Agreement C Nil No Retention shall apply to Crisis Management Expenses under Insuring Agreement D Nil No Retention shall apply to Investigation Costs under Insuring Agreement E \$25,000 each Claim under Insuring Agreement F

(II) EPL	\$4,000,000	Shared: N/A Shared with: (i): D&O ☐ (ii): FLI ☐	\$0 each Employment Practices Claim under Insuring Agreement A \$75,000 each Third Party Claim under Insuring Agreement B \$75,000 each Wage and Hour Claim under Insuring Agreement C
(III) FLI	N/A	Shared: N/A Shared with: (i): D&O ☐ (ii): EPL ☐	N/A each Claim (not applicable to any sublimit)

Policy Aggregate Limit of Liability: \$8,000,000 (for all purchased **Liability Coverage Sections** combined)

Liability Coverage Sections Specific Limits:

Coverage Section	Other Applicable Limit(s)	Limit
(I) D&O	Corporate Brand Protection / Crisis Management Expenses Sublimit of Liability:	\$250,000
	Corporate Investigation Costs Sublimit of Liability:	\$250,000
	Excess Directors or Officers Insurance Limit of Liability:	\$1,000,000
	Employed Lawyers Services Sublimit of Liability:	\$1,000,000
(II) EPL	Wage and Hour Claims Sublimit of Liability:	\$100,000
	Workplace Violence Expenses Sublimit of Liability:	\$250,000
	Workplace Violence Loss of Life Sublimit of Liability:	\$50,000
(III) FLI	Voluntary Compliance Loss Sublimit of Liability:	N/A
	<u>Covered Penalties Sublimits of Liability:</u>	
	HIPAA Penalties:	N/A
	Pension Protection Act Penalties:	N/A
	PPACA Penalties:	N/A
	Section 4975 Penalties:	N/A
	Section 502(c) Penalties:	N/A

Except for the Excess Directors or Officers Insurance Limit of Liability (which is in addition to the Policy Aggregate Limit and any applicable Separate or Shared D&O Limit of Liability), the Other Applicable Limit(s) described above are part of, and not in addition to the Policy Aggregate Limit and any applicable **Separate Limit of Liability** or **Shared Limit of Liability** under the respective Coverage Section.

Non-Liability Coverage Section Limits and Deductibles:

Coverage Section	Insuring Agreements	Limit Per Occurrence	Deductible Per Loss
(IV) CR	A: Employee Theft:	N/A	N/A
	B: Employee Benefit Plan:	N/A	N/A
	C: Client Property:	N/A	N/A
	D: Loss Inside the Premises:	N/A	N/A
	E: Loss Outside the Premise:	N/A	N/A
	F: Money Orders and Counterfeit Paper Currency:	N/A	N/A
	G: Depositors Forgery:	N/A	N/A
	H: Credit Card Forgery:	N/A	N/A
	I: Computer Fraud:	N/A	N/A
	J: Funds Transfer Fraud:	N/A	N/A
	K: Social Engineering Fraud:	N/A	N/A
	L: Voice Computer System Fraud:	N/A	N/A
	M: Restoration Expense:	N/A	N/A
	N: Claims Expense Coverage:	N/A	N/A

Extended Reporting Period:

(A) Additional Premium: 100%
 (B) Additional Period: 1 year

Run-Off Period:

1 Year: 100%
 2 Year: n/a
 3 Year: n/a
 4 Year: n/a
 5 Year: n/a
 6 Year: n/a

Subsidiary Acquisition:

Subsidiary Acquisition Threshold: 35%

Defense Costs Allocation:

Allocation Percentage: 100%

Knowledge of Claim: Chief Executive Officer, Chief Financial Officer, General Counsel or equivalent positions.

Pending or Prior Date:

D&O: February 14, 2021
 EPL: February 14, 2021
 FLI: N/A

Forms and Endorsements Attached at Issuance:

No.	Form Number / Edition Date	Form Name
Notices		
	EPL LCS (03/24)	Employment Practices Liability Loss Control Services
	TRIA (03/24)	Notice of Terrorism Insurance Coverage
	GFD-NY (11/24)	New York Disclosure Notice
Section (I) Directors, Officers and Corporate Liability		
	TMIP.100-PC (03/24)	Directors, Officers And Corporate Liability Coverage Section (I) for Private Companies
1	TMIP.104 (03/24)	Annuity Exclusion - Deletion
2	TMIP.109 (03/24)	Cyber Exclusion for Insured Entity
3	TMIP.131-PC (03/24)	Professional Liability Exclusion for Insured Entity
4	MAN1.008 (12.24)	Amend Investigation Costs - Books & Records, Appraisal Action Coverage
Section (II) Employment Practices Liability		
	TMIP.200 (03/24)	Employment Practices Liability Coverage Section (II)
1	TMIP.205 (03/24)	Immigration Claim Defense Cost Coverage
Section (III) Fiduciary Liability		
N/A	N/A	N/A
Section (IV) Crime Coverage		
N/A	N/A	N/A
Section (V) General Terms and Conditions		
	TMIP.500 (03/24)	General Terms and Conditions
1	TMIP.511 (03/24)	Coverage for Specified Controlled and Affiliated Corporations see schedule on quote dated Nov. 13, 2025
2	TMIP.534 (03/24)	Specific Event Exclusion

D&O	\$23,587
EPL	\$48,789
FLI	N/A
CR	N/A

Total Premium: \$72,376

Please see Conditions below for information to issue the policy.

Conditions:

In order to complete the underwriting process please forward us any additional information requested above. This Binder of Insurance is based on the information received and is subject to reconsideration if materially different or material information is obtained prior to the proposed inception date of the policy.

Issuance of an insurance policy is subject to payment of premium which must be fulfilled within thirty (30) days from the effective date of coverage.

Comments:

Important – Read Carefully

If, between the date of the original submission and the proposed inception date, there is a material change in any of the information (including, but not limited to, claims or potential claims) originally submitted or subsequently requested by Trisura, the applicant is required to notify Trisura immediately. Trisura reserves the right to withdraw this Binder of Insurance or modify the terms of this Binder of Insurance in the event of a material change in such information.

Trisura reserves the right to determine the inception date of any coverage granted according to the terms of this Binder of Insurance.

Upon issuance of the policy documentation as outlined above, this Binder of Insurance shall be of no force or effect.
Note: This insurance is issued pursuant to the state Surplus Lines laws where the Insured is domiciled. Persons insured by Surplus Lines carriers do not have the protection of the above captioned state's Guaranty Act to the extent of any right of recovery for the obligation of an insolvent unlicensed insurer. For purposes of surplus lines compliance, we require the producer to confirm, upon the binding of this placement, the insured's "home state" as defined in the Non-admitted and Reinsurance Reform Act of 2010 (NRRA). If the state set forth in "Insured Address" in this quote is the insured's "home state," then no action is required. However, if the insured's "home state" is other than that set forth in "Insured Address," then you must notify us in writing the correct "home state" of the insured prior to placement.

Any applicable taxes, surcharges or countersignature fees, etc., are in addition to the above figures. Your office is responsible for making State Surplus Lines Filings and complying with all applicable laws.

We appreciate the opportunity to provide this Binder of Insurance and your trust in Trisura.

Sincerely,
Thierno Barry

thierno.barry@trisura.com